

TENTATIVE RULINGS**April 14, 2025**

#	Case Name	Tentative
101	2023-01316826 Bertrand vs. Chapman University	1. Demurrer to Amended Complaint 2. Case Management Conference Moving party has been dismissed. Motion off calendar. Case Management Conference continued to April 28, 2025 at 10:00 a.m. in Department C27. Clerk to give notice.
102	2023-01343154 Chavez vs. Kuntz	Motion for Preference Plaintiff Karin Chavez as Trustee of the Anneliese Narath Family Trust udt 11/24/09's motion for trial preference is granted. Code Civ. Proc. § 36 states in pertinent part (emphasis added): (a) A <u>party</u> to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. * * * (c) Unless the court otherwise orders: (1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared. (2) At any time during the pendency of the action, a party who reaches 70 years of age may file and serve a motion for preference. Plaintiff moves for trial preference due to the age and health of her mother, Anneliese Narath. But, Anneliese Narath is not a party to the action. Thus, Plaintiff is not entitled to preference under Code Civ. Proc. § 36 (a). Plaintiff, here is "Plaintiff Karin Chavez as Trustee of the Anneliese Narath Family Trust udt 11/24/09." Karin Chavez submits a declaration in support of the motion, stating as follows: 1. I am the adult daughter of Anneliese Narath, and Trustee of the Anneliese Narath Revocable Trust, udt 11/24/2009. I am the plaintiff in the above-entitled matter, pursuant to my capacity as Trustee of the aforementioned trust. My mother resides with me at my Murrieta, California residence and I am her full-time caregiver. 2. My mother is 84 years old and in frail condition. Presently her heart condition is stable, however, she does have periods when her condition becomes life threatening and raises substantial medical doubt of her survival beyond six months. 3. My mother has a substantial interest in this case as she is the current and sole beneficiary of the aforementioned trust. This lawsuit seeks to recover over